



POLICE DEPARTMENT

August 26, 2025

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In the Matter of the Charges and Specifications :
- against - :
Police Officer Michael Figueroa :
Tax Registry No. 946987 :
33 Precinct :
-----X

Case No.
C-031167

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Nicole Jardim, Esq.
Taylor Barry (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Craig Hayes, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, wrongfully used force, in that he used his police vehicle to strike the dirt bike that Complainant was on, without police necessity.

P.G. 221-02, Page 2, Prohibitions 11, 12

USE OF FORCE

2. Police Officer Michael Figueroa, on or about November 5, 2022, at approximately 1815 hours, while assigned to the 33 Precinct and on duty, in the vicinity of the Exxon/Mobil gas station, located at 3740 Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide two unidentified individuals with a business card, without police necessity.

A.G. 304-11

COMPLIANCE WITH
NEW YORK CITY RIGHT
TO KNOW ACT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 15, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement that [REDACTED] ("Complainant") made to their investigators, as well as video footage of the incident. Respondent entered into evidence the transcript of Complainant's § 50-h hearing,¹ and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of Specification 1. In addition, I find Respondent Guilty of Specification 2 and recommend that he attend training.

¹ Section 50-h of the NYS General Municipal Law provides that "wherever a notice of claim is filed against a city... the city...shall have the right to demand an examination of the claimant relative to the occurrence and extent of the injuries or damages for which claim is made. . ."

ANALYSIS

This case arises from the November 5, 2022 stop and arrest of Complainant for various Vehicle and Traffic Law violations related to an unregistered and uninsured dirt bike. The following is a summary of facts that are not in dispute.

On the date in question, Respondent, along with Police Officer Neil O'Donnell,² and Detective Emmanuel Valerio, conducted patrol in a marked Radio Motor Patrol (RMP) sport utility vehicle. While traveling on Broadway near 155 Street, they observed several individuals on dirt bikes revving their engines, "popping wheelies," and driving on the sidewalk in and around the Exxon/Mobil gas station at 3740 Broadway. Respondent made a U-turn upon observing that several of these motorbikes had stopped at the gas pumps. Respondent pulled into the gas station, drove towards the gas pump and turned the RMP towards the stopped dirt bikes. At the same time, Complainant, who was sitting on his dirt bike by the gas pump, moved his bike in the direction of the RMP in an apparent attempt to flee. It is undisputed that the vehicles collided as Complainant jumped off the bike. Respondent then got out of the RMP, arrested Complainant, and seized the dirt bike, which another officer drove back to the precinct. At the same time, Police Officer O'Donnell and Detective Valerio were interacting with the driver and female passenger of another motorcycle present at the gas tanks. Upon determining that the bike was legally registered in Pennsylvania, Officer O'Donnell let the couple leave without making an arrest or issuing a summons. Respondent also interacted with this couple, but did not offer them a Right to Know Act business card. (Tr. 22-30, 42-43, 53-54; CCRB Ex. 1, *surveillance footage*; CCRB Ex. 4, *still photo of dirt bike*; CCRB Ex. 5A, *Complainant's CCRB interview*, at 10-11, 21-22, Resp. Ex. A, *Complainant's § 50-h hearing transcript*, at 10-15)

² Police Officer O'Donnell was promoted to Sergeant on June 30, 2023.

In dispute is whether Respondent's attempt to block the bikers in this manner constituted a wrongful use of force. Also in dispute is whether Respondent wrongfully failed to give his business card to the other riders he interacted with.

Specification 1: Wrongful Use of Force

Complainant has a pending civil lawsuit in connection with this matter and did not appear to testify at trial. Instead, the CCRB introduced into evidence the recording and accompanying transcript of his March 6, 2023 telephone interview with their investigators. (CCRB Ex. 5, 5A) During his case, Respondent introduced the transcript of Complainant's June 12, 2023 § 50-h hearing regarding his civil lawsuit. (Resp. Ex. A) It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated carefully to determine whether it is sufficiently reliable. In the absence of live testimony from Complainant, I carefully considered his prior statements in conjunction with the other evidence presented at trial.

During his interview with CCRB,³ Complainant explained that he had arranged to sell his dirt bike because he did not have time to ride it and "only rode it in the woods." Complainant recalled that on the date of the incident, he took the vehicle "for a spin to make sure everything was working fine, wash it, and put gas in it so...they could take it in perfect condition." He contended that the dirt bike was "legal" to be driven on public roads. Complainant recounted that at the gas station, he spoke with other people on motorcycles as he put gas into his bike. After filling the tank, he sat on his bike and heard yelling. Complainant explained that he pushed the bike forward, without turning it on, to see what was going on. He then saw a police car coming

³ Complainant was interviewed in Spanish utilizing the services of an interpreter.

toward him. Complainant continued, “the police car hit me, I fell to the ground, they got out of the police car aggressively and arrested me immediately.” (CCRB Ex. 5A at 10-12, 20-22)

Complainant stated that the RMP’s siren was not activated when it pulled into the gas station. When asked about whether the emergency lights were on, he replied that, “I didn’t have time to see because they came in way too fast.” (*Id.* at 22) Complainant clarified that he did not fall all the way to the ground. He recounted that, “they hit it on the left of the front wheel, so the bike fell to the right... and they ran over the bike,” and bent the tire rim. Complainant admitted that at the time of the collision, he did not feel any pain; however, he alleged that he later suffered lower back pain and was planning to see a doctor. (*Id.* at 22-26)

Complainant’s version of events, as provided in his June 12, 2023 § 50-h hearing, differed somewhat from that presented in his CCRB interview. First, he acknowledged that the dirt bike was neither registered nor insured and that he did not have a New York State motorcycle license. (Resp. Ex. A at 10) Second, when asked whether his vehicle was moving when the collision occurred, Complainant testified that the dirt bike was “stopped” and that he had not filled the gas tank. (*Id.* at 14, 16)

In addition to Complainant’s statements, the CCRB presented video surveillance footage that captured the incident. The following is a summary of CCRB’s Exhibit 1:

- | | |
|-----------|---|
| 0:00-0:05 | Several individuals, including Complainant, congregate near a gas pump before quickly mounting their respective motor bikes. |
| 0:06-0:08 | Respondent’s RMP enters the frame, turning right as it angles to cut off the motor bikes. At the same time, Complainant’s motor bike moves a few feet forward in the direction of the RMP, before veering to the right. |
| 0:09-0:14 | The RMP and Complainant’s motor bike collide. Complainant dismounts his motor bike as it tips over and the passenger door of the RMP opens. Complainant stumbles briefly before coming to a |

halt standing a few feet away as officers exit the RMP and run toward him.

0:15-0:26 Officers apprehend Complainant and place him in handcuffs.

Respondent took the stand and testified that illegal dirt bikes are a serious safety condition in his precinct, and he has dealt with them before. He recalled driving past the gas station and seeing multiple people on dirt bikes, "revving their engines, doing wheelies, going up and down on the sidewalk. . .going with and against traffic." He asserted that their actions would have been unlawful, even if the vehicles were legal. Respondent explained that he did not immediately stop the drivers because, in his experience, taking such action, "tends to lead to dangerous situations. . . ." (Tr. 23) In addition, he recounted that the Department has discouraged vehicle pursuits involving dirt bikes because of safety concerns. Respondent planned to address the situation in, "the way we're taught: We put it over the radio, we get other units, we notify aviation, different units to assist." (Tr. 24-26)

When Respondent saw Complainant and several other people with motor bikes near the gas pumps, he noticed that the bikes "appeared to be off because they were gassing up." He recalled making a second U-turn in order to approach those particular vehicles, "because I thought that would be the safest way to stop someone on an illegal dirt bike. . . ." Respondent stated that he drove the RMP into the gas station towards the pump and explained that he angled it in front of Complainant to cut him off. Respondent admitted that he turned the RMP towards Complainant's dirt bike "to get as close as possible to stop [him] if he attempted to flee. . . ." (Tr. 25-26, 41-42) Respondent acknowledged that he drove in front of Complainant's dirt bike and that the vehicles made contact, but he denied intentionally hitting the bike. He recalled that when he exited the RMP after they collided, Complainant "was just standing to the side and the bike was just on the floor." He testified that Complainant did not appear to be injured and did not

make any complaint about being hurt. In addition, Respondent recalled observing damage to the “lower right-hand side of the [passenger] door” of the RMP that prevented it from closing properly. He also saw the dirt bike after the collision and testified that it “did not look damaged at all.” Respondent stated that he saw the bike being driven back to the precinct by another police officer. (Tr. 27-30, 33, 44-45)

Respondent is charged with wrongfully using force by striking Complainant’s dirt bike with his police vehicle. Although it is undisputed that the two vehicles made contact, CCRB argues that Respondent engaged in misconduct by improperly driving into Complainant’s dirt bike.⁴ Respondent maintains that he was trying to block Complainant’s path and the dirt bike struck the RMP. At issue is whether CCRB has proven by a preponderance of the credible evidence that Respondent’s actions amounted to a wrongful use of force. I find that they have not.

Patrol Guide Section 221-01 sets forth that officers may use force “when it is reasonable to ensure the safety of a member of the service or a third person or otherwise protect life... or when it is reasonable to place a person in custody or to prevent escape from custody.” Additionally, when determining whether the use of force was reasonable, Patrol Guide 221-01 lists several factors to consider which include: the nature and severity of the crime; the duration of the action; whether the person is actively resisting custody; the presence of a hostile crowd or agitators; the size, age and condition of the subject, as well as the total number of officers present.

⁴ It should be noted that Patrol Guide 221-15, which was in effect on the date of this incident, prohibited, amongst other things, ramming into another vehicle or placing a moving Department vehicle in a position to be struck by the pursued vehicle. However, that procedure is inapplicable in this situation because it deals strictly with vehicle pursuits.

Complainant did not appear before the tribunal and was not subject to questioning regarding the incident. Nonetheless, the two hearsay statements entered into evidence reveal Complainant to be an unreliable narrator, and I am not persuaded as to the credibility of his account. For example, in his CCRB interview, Complainant asserted that the dirt bike could be legally operated on public highways while simultaneously insisting that he only rode it in the woods. Equally unconvincing was his statement during the 50-h hearing that he first learned that unregistered dirt bikes were not permitted to be driven on city streets during his arrest. Complainant also provided inconsistent statements regarding the moment of impact. Complainant told the CCRB investigator that upon seeing the RMP, he pushed the dirt bike forward “to see what was going on.” However, when asked during the § 50-h hearing whether he was moving when the collision occurred, he replied that the bike was stopped. Complainant’s varying accounts seem designed to minimize his culpability and paint him as an innocent bystander.

In contrast, Respondent took the stand and recounted what transpired in a straightforward and detailed manner. I credit his recitation of events, which is corroborated by the surveillance video and body-worn camera footage of the incident. Respondent testified knowledgeably about the high priority placed by the Department on addressing unlicensed motor bikes. Respondent was aware of the dangers involved in pursuing these vehicles and explained NYPD policy regarding how to approach these violations. He chose to address the condition in the safest way possible, by approaching bikes which were parked by the gas pumps rather than pursuing the drivers who were riding on the sidewalk. Respondent readily admitted that he intended to “block” the path of Complainant and the other drivers by the pump by driving close to them and angling the RMP to limit their ability to maneuver around it. He acknowledged that while doing

so, the vehicles made contact with one another. Although the collision caused the RMP's door to become misaligned, there is no credible evidence in the record that Complainant was injured by the impact and the dirt bike was sufficiently operable to be safely driven to the precinct.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that Respondent wrongfully used force by hitting Complainant's dirt bike with the RMP he was operating. To sanction civil service employees for misconduct, there must be some showing of fault on the employee's part. Mere errors of judgment, lacking in willful intent, and not so unreasonable as to be considered negligence, are not a basis for finding misconduct. As to negligent conduct, the degree of carelessness must be more than *de minimis*, since minor errors do not rise to the level of misconduct.

Although unfortunate, the collision at issue here appears to be the result of an accident that does not rise to the level of misconduct. Respondent was faced with a serious public safety concern which needed to be addressed. He identified the safest route to do so, approaching the dirt bikes while they were stopped at a gas station as opposed to risking a dangerous vehicle pursuit. As confirmed by the video, prior to Respondent's approach, Complainant was sitting on his dirt bike which he had parked directly in front of the gas pump. Suddenly, Complainant and the other bikers turn their heads in what seems to be the direction of the RMP. As the RMP comes into view, the four riders in the frame, including Complainant, start to pull out. Complainant appears to be using his feet, rather than the engine, as he struggles to maneuver his bike. He moves his bike away from the pump and veers in the direction of the approaching RMP. It is then that the two collide. Inasmuch as Complainant chose to move his bike toward the approaching RMP, the tribunal cannot find that the collision, which unfolded very quickly,

constituted a wrongful use of force, particularly given Respondent's credible testimony that his intent was to merely block the bikes.

Accordingly, I find that there is insufficient proof to establish that the collision rose to the level of sanctionable misconduct and that Respondent wrongfully used force. Thus, I find Respondent Not Guilty of Specification 1.

Specification 2: Failure to Provide Business Card

Respondent stands charged with failing to provide a business card to the unidentified male motorcycle driver and his female companion.

During cross-examination, Respondent acknowledged that he was involved in stopping two other riders and asking them questions. (Tr. 53-54) He did not deny, nor did he offer an explanation for his failure to provide a business card after this interaction. The question for the tribunal is whether, under the circumstances, Respondent was required to offer his business card to these individuals. I find that he was.

Administrative Guide procedure 304-11 ("Compliance With New York City Right to Know Act") states in relevant part, "For the purpose of this procedure, a business card is to be *offered* for a law enforcement activity, except in cases when a summons is issued or an arrest is made, as follows:

- a. Noncustodial questioning of individuals suspected of criminal activity (**Level 2 Encounter**)
- b. Stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (**Level 3 Encounter**)" (emphasis added)

Here, the plain reading of this procedure places an affirmative duty upon the uniformed member of service to offer a business card to members of the public under the appropriate

circumstances. The purpose behind this requirement is to increase transparency and accountability with the public.

Respondent acknowledged that he was involved with stopping and questioning the unidentified motorcycle driver and the female passenger. It is undisputed that they were neither arrested nor issued a summons. Respondent did not offer an explanation as to why he failed to offer a business card, which violates the clear language of the Administrative Guide.

Accordingly, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent was appointed to the Department on July 8, 2008, and has no formal disciplinary history. He has been found guilty of failing to offer two unidentified individuals a business card when required. The Matrix provides for a presumptive penalty of three (3) vacation days and a mitigated penalty of training for the failure to offer a business card. (Matrix, p. 28)

In determining an appropriate penalty, all of the surrounding circumstances must be taken into consideration. Respondent was focused on the arrest of Complainant and was not the lead officer interacting with these two individuals; the tribunal found, though, that he was courteous and professional when he did interact with them. In addition, I note that other dirt bikes remained in the vicinity, revving their engines in a manner that was distracting. (*See* CCRB Ex. 2,

Respondent's body-worn camera) I do not find that Respondent acted in bad faith; I believe the failure to offer the business card was simply an oversight.

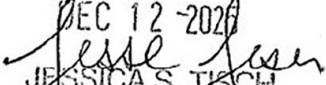
Respondent has worked for the Department for seventeen years and has not been the subject of any formal discipline. He has received "Exceptional" on his last five formal performance evaluations and has been awarded four medals for Meritorious Police Duty and four medals for Excellent Police Duty. These accomplishments, along with the circumstances of the encounter as outlined above, argue in favor of the imposition of the mitigated penalty. Accordingly, I recommend that Respondent be sent for training in the requirements of the Right to Know Act.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

DEC 12 2020

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER MICHAEL FIGUEROA
TAX REGISTRY NO. 946987
DISCIPLINARY CASE NO. C-031167

Respondent was appointed to the Department on July 8, 2008. On his three most recent annual performance evaluations, he was rated "Exceptional" for 2021, 2022 and 2023. He has been awarded four medals for Meritorious Police Duty and four medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials